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Rep. Heffernan & Rep. Phillips & Rep. Griffith &
Rep. Burns & Sen. Hoffner & Rep. K. Williams
Sens. Lockman, Mantzavinos, Pinkney, Seigfried,
Townsend; Reps. Bush, Carson, Gorman, Harris,
Lambert, Morrison, Neal, Snyder-Hall

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 61

AN ACT TO AMEND TITLE 26 OF THE DELAWARE CODE RELATING TO PUBLIC UTILITIES AND VOTING
BY MEMBERS OF THE PJM INTERCONNECTION REGIONAL TRANSMISSION ORGANIZATION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 10, Title 26 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 1021. Voting at the PJM Interconnection Regional Transmission Organization.

(a) For purposes of this section:

(1) "Affiliate" means a person, including an entity of any kind, that directly or indirectly, or through one
or more intermediaries, controls, is controlled by, or is under common control with, or has, directly or indirectly,
any economic interest in another person.

(2) "Meeting" means any committee, user group, task force, or other part of the regional transmission
organization in which votes are taken.

(3) "Recorded vote" means a vote that is tabulated, either individually or as part of a sector, for any
purpose at a meeting, regardless of:

a. Whether the vote represents a final position of any person casting the vote; or

b. The decision-making authority of those voting.

(b) Each year, DP&L, DEC, the Delaware Municipal Cooperative, the Division of the Public Advocate, and any of
their affiliates entitled to vote at a meeting of, or on a matter before, the PJM Interconnection Regional Transmission
Organization shall submit to the Commission or the General Assembly a report on each recorded vote cast during the
immediately preceding calendar year. A utility may include the report with its annual report on its compliance with the
renewable energy portfolio standards under Title 26, Chapter I, Subchapter III-A.

(1) The report shall include:

a. All recorded votes cast, regardless of whether the vote is otherwise disclosed.

b. All recorded votes cast by an affiliate.

22 c. A brief description explaining how each vote cast by the public utility or its affiliate, as
23 appropriate, is in the interest of the public.

SYNOPSIS

This bill requires disclosure of votes cast at meetings of, or matters before, the PJM Interconnection Regional Transmission Organization.

Author: Senator Hansen